

The logo consists of a solid blue rectangle. Inside the rectangle, the words "NATIONAL", "LABORATORY", and "OF THE ROCKIES" are stacked vertically in a white, sans-serif, all-caps font.

NATIONAL
LABORATORY
OF THE ROCKIES

APPENDIX A

STATEMENT OF WORK

FOR

Noxious Weed and Vegetation Control

Revision 0

February 17, 2026

1) Background:

The National Laboratory of the Rockies (NLR) is a national laboratory owned by the U.S. Department of Energy (DOE). NLR is the only federal laboratory dedicated to research, development, commercialization, and deployment of energy efficiency technologies. NLR is managed and operated for DOE's Office of Critical Minerals and Energy Innovation by The Alliance for Energy Innovation (Alliance), the "M&O Contractor".

NLR takes pride in its world-class research, talented staff, sustainable campus, and results that positively impact our local, national and global communities. On the NLR sites there are state-of-the-art facilities available to industry entrepreneurs, engineers, scientists, and universities for researching and developing their energy technologies. The National Laboratory of the Rockies (NLR) consists of three campuses in Colorado, with 65+ buildings that range in age from new construction to 40+ years old. NLR appoints internal Facility Managers to manage multiple buildings throughout all campuses.

The Subcontractor shall provide all personnel, labor, management, tools, supplies, materials, equipment, and services necessary to ensure that noxious weed and vegetation control is performed at NLR facilities. The Subcontractor shall ensure that all objectives outlined in this Appendix A – Statement of Work are met in a timely and professional manner.

Many services performed by Subcontractors on-site at NLR are applicable to Service Contract Labor Standards Wage Determinations. Subcontractor shall reference the executed Subcontract Schedule or Purchase Order to confirm SCLS applicability.

2) Description of Work:

- a) Subcontractor is responsible for decreasing the overall presence of noxious weeds across the site and managing vegetation around decorative rock areas and fire breaks through the application of pesticides. Subcontractor shall provide recommendations that offer approaches and remedies specific to plant species to the NLR Subject Matter Expert (SME) for review and approval.
- b) Subcontractor shall comply with all laws, regulations, policies, procedures and guidelines set forth by NLR, the State of Colorado and the Federal Government.
- c) Pesticides shall be applied by State licensed applicators in accordance with the requirements described on the pesticide label.
- d) Subcontractor shall maintain a Commercial Applicator License and register with the Colorado Department of Agriculture. A copy of the applicator's license shall be provided to the Technical Monitor and Environmental, Safety, Health, Quality (ESHQ) POC prior to commencing herbicide treatment.
- e) Subcontractor shall provide as-needed services at the request of the Technical Monitor. As-needed services shall be provided within five to ten (5-10) business days of the NLR TM request.
- f) Subcontractor shall perform all tasks as outlined in the table under 5) Scheduled Tasks.

- g) Specification sheets for all herbicide and chemical applications are to be submitted to NLR ESHQ department for approval prior to use.
 - 1. Pesticide: Registered and approved by the EPA, acceptable to authorities having jurisdiction, and of type recommended by manufacturer for each specific problem and as required for project conditions and application. Do not use restricted pesticides unless authorized in writing by authorities having jurisdiction.
 - i. Selection of pesticide(s) shall be contingent upon but not limited to the identification of specific pest(s) to be prevented, destroyed, repelled or mitigated.
 - 2. Pre-Emergent Herbicide (Selective and/or Non-Selective): Effective for controlling the germination or growth of weeds within planted areas at the soil level directly below the mulch layer.
 - i. Selection of Pre-Emergent Herbicide(s) shall be contingent upon, but not limited to the following:
 - a. Identification of specific weed(s) to be eradicated
 - b. Identification of growth rate (at the time of application) required for herbicide to be effective, specific to each type of weed
 - c. Locations of weeds (slope, exposure, etc.)
 - d. Hydrology of the area (i.e., limitations due to possible contamination to wetlands, subsurface water sources, etc.)
 - e. Soil type(s)
 - f. Application type (spot versus broadcast)
 - 3. Post-Emergent Herbicide (Selective and/or Non-Selective): Effective for controlling weed growth that has already germinated.
 - i. Selection of Post-Emergent Herbicide(s) shall be contingent upon, but limited to, the following:
 - a. Identification of specific weed(s) to be eradicated
 - b. Identification of growth rate (at the time of application) required for herbicide to be effective, specific to each type of weed
 - c. Location of weeds (slope, exposure, etc.)
 - d. Hydrology of the area (i.e., limitations due to possible contamination to wetlands, subsurface water sources, etc.)
 - e. Soil type(s)
 - f. Application type (spot versus broadcast)
 - g. Identification of plants to be saved
- 3) Application Methods:
 - a) Herbicide application can be achieved through:
 - 1. By target area:
 - i. Foliar Application – achieved through broadcast applications, spot treatments or directed sprays
 - ii. Soil Application – achieved through pre-plant incorporated or granular application.
 - iii. Wetland Application – achieved through broadcast applications, spot treatments or directed sprays.

- b) Large herbicide applications shall be made using agricultural spray equipment mounted on four-wheel drive vehicles (tractor or truck) or all-terrain vehicles; a side-by-side is preferred; travel speeds must be less than five (5) miles per hour.
 - 1. Gross vehicle weight of the spray vehicle loaded with spray mixture shall not exceed 4000 lbs.
 - 2. Truck-mounted spray equipment may exceed this amount and may only be used in areas where a lighter vehicle cannot be utilized.
 - 3. Small area herbicide applications shall be made with hand operated sprayers such as hose-handgun and backpack.
 - 4. In using such hand devices, spray nozzles shall be positioned within 20 inches of the target plant(s).
 - 5. Spraying pressures shall not exceed 30 pounds per square inch.
- c) Herbicides shall not be stored on NLR's campus. The subcontractor shall ensure they have a sufficient supply of herbicides to last the entire day.
 - 1. Once mixed, the herbicide shall be transported in water; no other mixing agents shall be used.
 - 2. Other adjuvants, such as surfactants, a drift control agent, or application marking dye, shall be added as required to ensure that all plants are thoroughly contacted by the herbicide spray solution.
- d) Herbicides designated for aquatic use may only be applied in aquatic environments following the label's instructions. Herbicides not intended for aquatic use must not be applied to areas with standing water or any other aquatic environments. Application of herbicides is permitted up to 20 feet from these areas unless the label or Safety Data Sheet (SDS) imposes stricter limitations.
- e) Herbicide application postings, both before and after application, as well as application records, must comply with relevant state and federal regulations.
 - 1. Prior to conducting herbicide spraying, advance notification and coordination must be carried out with the NLR SME.
- f) Herbicides shall not be applied when wind speeds exceed 15 mph, or the maximum wind speed specified on the product label, whichever is more restrictive. Application is also prohibited during active precipitation. All herbicide use shall be conducted strictly in accordance with the manufacturer's label instructions.
 - 1. Herbicides should only be applied when the area is unoccupied. The NLR SME can help coordinate with other NLR staff to ensure that the application is finished at least one hour before the area is reoccupied.
- g) All products in tanks must either be fully utilized and applied to the site or removed by the subcontractor.
- 4) Reporting:
 - a) Subcontractor shall complete an Herbicide Application Record for each application. This record template will be provided by NLR and is subject to change. The Herbicide Application Record must be provided by the end of the following business day.
 - b) Materials and Supplies Compliance and Reporting
 - 1. All chemical products shall be approved by the NLR TM and NLR SME prior to use on-site.

- i. All chemicals and supplies shall be environmentally preferred and/or bio-based as required in the Appendix B-3 Standard Terms and Conditions.
 - ii. The Subcontractor shall report information on the use of the above items on a Quarterly Basis utilizing the Exhibit A – Bio-Based Reporting Form to the NLR TM and NLR Sustainability Manager Point of Contact or delegate.
 2. The Subcontractor shall include the following information:
 - i. Product type
 - ii. Purchased conforming to bio-based requirements (yes or no)
 - iii. Total dollar amount of bio-based product
 - iv. Any impediments to the use of bio-based products
 - v. Quarter 1 = October, November, December
 - vi. Quarter 2 = January, February, March
 - vii. Quarter 3 = April, May, June
 - viii. Quarter 4 = July, August, September
 - ix. Environmental attributes to look for:
 - x. Minimizes exposure to concentrates.
 - xi. No ozone depleting substances.
 - xii. Recyclable packaging.
 - xiii. Recycled content in packaging.
 - xiv. Reduced bio concentration factor.
 - xv. Reduced flammability.
 - xvi. Reduced or no added dyes, except when added for safety purposes.
 - xvii. Reduced or no added fragrances.
 - xviii. Reduced or no skin irritants.
 - xix. Reduced or no volatile organic compounds (VOCs).
 - xx. Reduced packaging.
 3. The Subcontractor shall provide a copy of the Safety Data Sheet (SDS) to the NLR TM for each chemical product used under the Subcontract.
- c) Personnel Requirements
1. Subcontractor Employees (All Staff):
 - i. The Subcontractor must assure that the employees/subcontractors have sufficient English language speaking skills and/or interpretive services available to successfully communicate with the NLR TM at each site.
 2. Commercial Applicator
 - i. All Subcontractor employees working on-site as Certified Herbicide Applicators shall be Colorado certified with instruction in the following categories: Category 107: Rangeland Pest Control, Category 108: Aquatic Pest Control, Category 109: Industrial and Right-of-Way Weed Control, Category 206: Turf Pest Control, Category 207: Ornamental Pest Control, Category 304: Residential/Commercial Pest Control.
 - a. At a minimum, Subcontractor shall provide at least one primary and one secondary Certified Applicator.

- b. The Certified Applicator shall meet with the NLR Technical SME for Noxious Weed Management to review the Annual Weed Management Plan and assist with implementation of the plan.
 - c. This team member must understand the principles of integrated weed management including planning, prevention, inventory and monitoring, as well as the full range of control techniques.
 - d. Required skills include the ability to identify invasive plant species, implement a variety of chemical methods to control invasive plants.
- 3. Qualified Supervisor
 - i. The Subcontractor shall assign at least one primary Supervisor with all contact information to be provided to the NLR TM in writing prior to the execution of the Subcontract or within 48 hours of any personnel change via written notice to NLR TM.
 - ii. The Supervisor shall have the following qualifications and certification in addition to the requirements for all subcontractor employees:
 - a. At least five to seven (5 – 7) years of experience working in noxious weed and vegetation control management.
 - iii. At least three to five (3 – 5) years of supervisory experience.

d) Exhibits

- 1. Exhibit 1 – 2026 NLR Weed Management Plan
- 2. Exhibit 2 – Bio-Based Reporting
- 3. Exhibit 3 – Noxious Weed Species Identified at the South Table Mountain and Flatirons Campus
- 4. Exhibit 4 – FC Conservation Areas
- 5. Exhibit 5 – FC 2026 Fire Mow Map
- 6. Exhibit 6 – STM Campus Mow and Fire Map

5) Scheduled Tasks:

<u>Location:</u>	<u>Season:</u>	<u>Type:</u>	<u>Due:</u>
STM	Spring	Bare Ground Blanket Application	Within 5-10 business days of NLR TM/SME Request
STM	Spring	Bare Ground Touchup Application	Within 5-10 business days of NLR TM/SME Request
STM	Spring	Turf Weed Control	Within 5-10 business days of NLR TM/SME Request
STM	Spring	Selective Weed Control	Within 5-10 business days of NLR TM/SME Request
STM	Summer	Turf Weed Control	Within 5-10 business days of NLR TM/SME Request
STM	Spring	Native Grass Weed Control (including under solar arrays)	Within 5-10 business days of NLR TM/SME Request

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STM	Fall	Native Grass Weed Control (including under solar arrays)	Within 5-10 business days of NLR TM/SME Request
STEP	Spring	Bare Ground Blanket Application	Within 5-10 business days of NLR TM/SME Request
STEP	Spring	Turf Weed Control	Within 5-10 business days of NLR TM/SME Request
STEP	Summer	Bare Ground Touchup Application	Within 5-10 business days of NLR TM/SME Request
STEP	Summer	Turf Weed Control	Within 5-10 business days of NLR TM/SME Request
FC	Spring	Bare Ground Blanket Application	Within 5-10 business days of NLR TM/SME Request
FC	Spring	Bare Ground Touchup Application	Within 5-10 business days of NLR TM/SME Request
FC	Spring	Selective Weed Control – <i>Offsite</i> RFNWR Water Line and Utility ROW	Within 5-10 business days of NLR TM/SME Request
FC	Spring	Native Grass Weed Control (including under solar arrays)	Within 5-10 business days of NLR TM/SME Request
FC	Fall	Native Grass Weed Control (including under solar arrays)	Within 5-10 business days of NLR TM/SME Request

6) **NLR Points of Contact:**

a) NLR Technical Monitor (TM)

1. The Primary TM for this requirement is Elizabeth Latino, Elizabeth.Latino@nlr.gov, (303) 598-9745.
2. The Secondary TM for this requirement is Matthew Lynch, Matthew.Lynch@nlr.gov, (303) 598-2772.
3. The Subject Matter Expert for this requirement is Kurt Schlomberg, Kurt.Schlomberg@nlr.gov, (720) 940-0040.
4. The Subcontractor is responsible for coordinating all questions, problems, or operational technical matters of this subcontract with the NLR TM.
5. In the event the NLR TM is not available at the time of the request, operational questions can be directed to the NLR Work Control Center (WCC) at (303) 384-7344.

b) Standard Performance Scheduling

1. The point of contact for scheduling on this subcontract is NLR WCC at (303) 384-7344.

c) NLR ESHQ Point of Contact(s):

1. The Primary ESHQ Point of Contact for this requirement is Tim Higginbotham, Tim.Higginbotham@nlr.gov, (720) 908-8673.
2. The Secondary ESHQ Point of Contact for this requirement is John Boysen, John.Boysen@nlr.gov, (720) 641-1107.

d) NLR Subcontract Administrator (SA)

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1. Contractual questions shall be directed to the SA listed in the Subcontract Schedule or Purchase Order.
- 7) Environmental, Safety, Health, and Quality (ESHQ) & Security:
 - a) All Subcontractor employees are to wear a NLR identification badge on their outer garment, upper portion of their body at all times while on the premises.
 1. Subcontractors will not be allowed on site without badges.
 2. All issued badges must be returned immediately to the Site Entrance Building upon termination of the work at NLR.
 - b) The Subcontractor shall comply with all safety requirements at the following website: <https://www.nlr.gov/about/ehs-construction.html>
 - i. At a minimum, the Service and Maintenance Subcontractor Environment, Safety & Health Manual is applicable to this SOW.
 - ii. The Subcontractor shall submit an Environmental, Safety, and Health Risk Evaluation Worksheet.
 - iii. The Subcontractor shall provide proper personal protection equipment.
 - iv. The Subcontractor shall attend a NLR Contractor Safety Orientation meeting with a NLR Environmental Safety, Health, and Quality (ESHQ) representative.
- 8) Working Hours:

NLR regular business hours are 7:00am to 5:00pm., Monday through Friday except NLR recognized holidays. The Subcontractor personnel scheduled to work during non-working hours must notify the NLR TM prior to the start of work to ensure the Site Entrance Building has knowledge of the Subcontractor coming on-site after-hours.

The days designated as NLR holidays (i.e., New Year's Day, Martin Luther King Jr. Day, Memorial Day, Juneteenth, Independence Day, Labor Day, Thanksgiving Day, Day after Thanksgiving, and Christmas Day) are not NLR workdays. If a NLR holiday falls on a Saturday or Sunday, the preceding Friday or the following Monday may not be a NLR workday. The Friday after Thanksgiving is not a NLR workday.
- 9) Locations:
 - a) The Subcontractor shall perform services outlined in this Appendix A – Statement of Work at the following locations. Future locations may be added or removed via mutually agreed to Subcontract or Purchase Order modification completed by the NLR Subcontract Administrator.
 1. **South Table Mountain Site (STM)**, 15013 Denver West Pkwy, Golden, CO 80401.
 2. **Flatirons Campus (FC)**, 19001 W. 119th Avenue, Arvada, CO 80007.
 3. **South Table Mountain Energy Park (STEP)** - 15445 S Golden Road, Golden CO 80401.
 - b) Please reference the maps located on the NLR website links below. See Technical Monitor for additional information on locations as necessary.
 1. Golden STM Campus: <https://www.nlr.gov/about/golden.html>

2. Flatirons Campus: <https://www.nlr.gov/about/flatirons-campus.html>
3. STEP Campus: Reference Exhibit: [South Table Mountain Energy Park Map](#)

10) Glossary:

a) Definitions:

1. As-Needed – Any service required beyond the regularly scheduled tasks to ensure performance standards are met. At the request of the NLR Technical Monitor (TM).
2. NLR – National Laboratory of the Rockies
3. SOW – Statement of Work
4. TM – Technical Monitor
5. SA – Subcontract Administrator
6. SCLS – Service Contract Labor Standards
7. EPA – Environmental Protection Agency

b) Location Acronyms:

1. STM – South Table Mountain Campus
2. FC – Flatirons Campus
3. STEP – South Table Mountain Energy Park